

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

REBECCA LYNN EBERSPAECHER,

Petitioner

VS.

DANIEL JOSEPH BUCKLEY,

Respondent

) Case Number: FCS-09-343996

) Hearing Date: September 24, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER OF CHILD SUPPORT FINDING RE ADULT DEPENDENT CHILD

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner, Rebecca Lynn Eberspaecher (Mother) and Respondent, Daniel Joseph Buckley (Father). There is one minor child subject to this proceeding Patrick (DOB: 7/26/2008).
- 2) On 3/6/17, a Stipulation and Order was filed, which provides that Father will pay monthly child support in the amount of \$5,000 to Mother commencing on 3/1/17 and continuing until Patrick “is 18 years of age or 19 years if he has not yet graduated from high school, dies, enters military service or is otherwise emancipated, whichever occurs earlier.” The parties agreed for Mother to be the sole trustee of the Patrick Ryan Wallek Buckley Irrevocable Trust dated 7/6/2012. Father further agreed to maintain a \$750,000 term life insurance policy, with Patrick as the sole beneficiary “so long as there is an obligation to pay child support.”
- 3) No pleadings were filed between March 2017 and June 2026.
- 4) Now on for hearing is Mother’s Request for Order filed 6/24/26 asking the Court to make a finding that Patrick is an adult child who is incapacitated from earning a living and without sufficient means pursuant to Family Code section 3910 and to order continued child support as

1 this Court deems appropriate. Mother asserts that Patrick was diagnosed with autism spectrum
2 disorder on 5/10/13. In 2025, Patrick was evaluated by Dr. Susan Martin, who determined that
3 Patrick “would require significant support throughout his adult life....” Currently, Patrick is
4 enrolled in Truckee Meadows Community College as a non-degree student. As a non-degree
5 student, Patrick does not qualify for financial aid or scholarships. Thus, Truckee Meadows
6 Community College will be paid for out of pocket. Patrick requires a one-on-one aide at
7 Community College who will likely be Mother. Mother has reached out to a reading specialist,
8 Dr. Julie Begbie-Striker, to work with Patrick on his reading. This would be an additional out of
9 pocket cost for Mother. Mother believes Patrick will soon qualify under Father’s Social Security
10 as a beneficiary. Mother asserts the amounts received through public benefits will be insufficient
11 to cover the totality of Patrick’s living expenses.

12 5) There is no Proof of Service on file indicating Father was served with the 6/24/26 Request for
13 Order.

14 6) Father did not file a Responsive Declaration.

15 7) Mother also did not file an Income and Expense Declaration.

16 **B. Findings and Order**

17 **1) The hearing on Mother’s 6/24/26 Request for Order is hereby CONTINUED to November 17,**
18 **2026 at 9 AM in Dept. 403.**

19 2) At least 16 Court days prior to the next hearing date, Mother shall file and serve an Income and
20 Expense Declaration as well as an address verification for Father under Family Code section 215.

21 3) At least 16 Court days prior to the next hearing date, Mother shall serve on Father:

- 22 a. Request for Order filed 6/24/26;
- 23 b. Mother’s Income and Expense Declaration;
- 24 c. Findings and Order After Hearing for the 9/24/26 hearing date;
- 25 d. Blank Responsive Declaration;
- 26 e. Blank Income and Expense Declaration;
- 27 f. Tentative Ruling Instructions

28 4) At least 9 Court days prior to the next hearing date, Father may file and serve a Responsive
29 Declaration and shall file and serve an Income and Expense Declaration.

1 5) At least 5 calendar days prior to the next hearing date, Mother may file and serve a Reply
2 Declaration.

3 6) At least 5 calendar days prior to the next hearing date, both parties shall file and serve proposed
4 Statements of Support Calculation.

5 7) The Court will prepare the Findings and Order After Hearing.
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